

Federal Maritime Commission

Plaintiff Motion to Vacate Decision on Docket No. 1954 (F)

Taylors Resources Inc (USA) d/b/a/ Bridgewater Landing, Inc (USA

v.

Mitsui OSK. Lines LTD. d/b/a MOL America

**PLAINTIFF REQUEST TO VACATE DECISION ON RULING OF VIOLATION OF
SECTION 41102 (A) OF DOCKET NO 1954 (F). REQUEST FOR APPEAL OF
DECISION BASED ON PERTINENT FACT OF EVIDENCE SUBMITTED TO THE
FEDERAL MARITIME COURT AND DEFENDANT FOR CONSIDERATION**

To: The Honorable Judge Clay G. Guthridge
Administrative Law Judge Federal Maritime Commission

Dear Sir,

In Bridgewater's Amended Complaint to this Commission, Bridgewater alleged that Mitsui violated section 41102(A) of the ACT by means of "false billing" Your Honors decision stated "When an issue not raised by the pleading is tried by parties' express or implied consent, it must be treated in all respects as if raised in the pleadings FED. R. CIV. P 15(b)(2) made applicable to this proceedings by 46 C.F.R. 502.12

Mitsui has provided to this court in there Exhibit MOL-23, presented on August 1, 2016 to this court a copy of the Tariff rates charged for detention/ demurrage charges in effect for China.

Prior to this date Mitsui had only provided to Bridgewater there Exhibit MOL 15. The original contract with filed Tariff, that Bridgewater Landing had consented too.

Bridgewater contended and still contends that Mitsui falsely billed Bridgewater Landing for Detention charges based on Mitsui not providing a copy of the tariff of those charges that would have been due under Exhibit MOL 23 until after damages had started and finished to accrue.

Bridgewater Landing, therefore requests your Honor to reverse this decision for false billing based on this point of fact and find in favor of Bridgewater Landing and direct Mitsui to dismiss all Detention / Demurrage/ Disposal Charges against Bridgewater Landing and any potential attorney fee's against Bridgewater Landing Inc and further direct Mitsui to withdraw if complaint against Bridgewater Landing in Middlesex County Court in New Jersey.

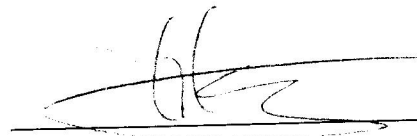
Finally, BLI asks this court to find in their favor based on the evidence BLI has provided and reject MOL defense and admonish MOL for this violation.

Signed

Dated: August 20, 2017,

Sworn to and subscribed
before me this
20 day of August 2017


KERRI J. KEITH
NOTARY PUBLIC OF NEW JERSEY
Comm. # 2413530
My Commission Expires 10/14/2021


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